

Members of Municipal Councils (Disclosure of Assets) Rules, 1973

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State of Tamilnadu- Act

Members of Municipal Councils (Disclosure of Assets) Rules, 1973

TAMILNADU

India

Members of Municipal Councils (Disclosure of Assets) Rules, 1973

Act 474 of 1973

Published on 25 April 1974

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Members of Municipal Councils (Disclosure of Assets) Rules, 1973

Published vide Notification No. G. O. Ms. No. 858, Rural Development and Local Administration Department, dated 25th April 1974 - S.R.O. No. A-474 of 1973

Published in Part V, page 698, of the Tamil Nadu Government Gazette, dated 13th June 1974.

In exercise of the powers conferred by sub-section (i) of section 303 of the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920), the Governor of Tamil Nadu hereby makes the following rules: -

1.

Short title and commencement.

- (i) These rules may be called the Members of the Municipal Councils (Disclosure of Assets) Rules, 1973.

(ii)

They shall come into force at once.

2.

Periodical disclosure of assets of members of the municipal councils.

- Every member of a municipal council including the Chairman and the Vice-Chairman shall -

(a)

if he holds office as such on the date of commencement of these rules, as soon as may be after such date; or

(b)

if he is elected or co-opted after such date, as soon as may be after such election or co-option; and

(c)

thereafter at intervals of every 12 months ending with the 31st day of March,

furnish to the executive authority of the municipal council in the form appended to these rules a return of -

(i)

all properties owned, acquired or inherited by such member or any member of his family; and

(ii)

all properties held on lease or mortgage either in his own name or in the name of any member of his family, together with details of the means, by which, or the sources from which, such property was acquired or inherited.

3.

Returns to be placed at the meeting and to be public documents.

- Every return submitted under rule 2 shall, -

(1)

as soon as possible after it is submitted, be placed at the meeting of the council; and

(2)

be deemed to be a public document and the executive authority may, subject to such conditions (including payment of fees) as may be prescribed by such authority give to any person on demand a copy of such return.

Appendix

Form

[See rule 2]

Return of assets of the Members of the Municipal Council/Chairman/ Vice-Chairman.....Municipal Council as on the 31st march.....

Name of the Member, the Chairman or the Vice-Chairman.

Date of the election or co-option

Assets of the Members

(1)

Immovable property

(2)

Business interest -

(a)

Shares

(b)

Stocks

(c)

Scrip

(d)

Partnership

(e)

Debenture and securities

(3)

Other interested Bank Accounts

(4)

(a)

Jewellery

(b)

Gold

(c)

Precious stones

Where the aggregate value of all the three items exceeds Rs. 10,000

(5)

Movables (including motor vehicles) where the aggregate value exceeds Rs.10,000

(6)

Details of Trusts with which the Member has any connection

(7)

Remarks, if any, of the member.

Assets of the Members of the Family

(1)

Immovable property

(2)

Business interest -

(a)

Shares

(b)

Stocks

(c)

Scrip

(d)

Partnership

(e)

Debenture and securities

(3)

Other interested Bank Accounts

(4)

(a)

Jewellery

(b)

Gold

(c)

Precious stones

Where the aggregate value of all the three items exceeds Rs.10,000

(5)

Movables (including motor vehicles) where the aggregate value exceeds Rs. 10,000

(6)

Details of Trusts with which the member has any connection

(7)

Remarks, if any, of the member.

Declaration

I,....., declare that to the best of my knowledge and belief, the information furnished in the above return is true and complete.

Place:Date:

Signature.

Note. - (1) "Members of the family means any person related, whether by blood or marriage, to the member of the municipal council, or to his wife or her husband and wholly dependent on such member.

(2)

"Immovable property" includes land and buildings.

(3)

The members may give a short note explaining the nature of acquisition of the assets in the column relating to remarks.

(4)

If the member so chooses, he may also explain the liabilities incurred by him and by his family members in the column relating to remarks.

Procedure for furnishing the Return

(1)

Every member shall fill up this form furnishing information for the period ending with 31st day of March.

(2)

The member shall after filling it, send it to the Executive Authority of the Council on or before the 30th day of September every year.

(3)

The Executive Authority concerned on receipt of the same shall cause it to be placed at the meeting of the council.

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